

9.	25CV3320	JP MORGAN CHASE BANK N.A. VS. GINA R SARTAIN
ENTRY OF JUDGMENT ON THE PLEADINGS		

On May 21, 2026, Plaintiff filed its Notice of Motion and Motion for Judgment on the Pleadings; Memorandum of Points and Authorities in Support of Motion and a Declaration of Eric Oyama Per CCP § 439.

This matter stems from Plaintiff's efforts to collect \$11,889.23 in credit card debt from Defendant. The Complaint was filed on December 11, 2025. Defendant filed her Answer on January 12, 2026. Defendant admits all of the statements of the complaint are true except that she "cannot pay full amount and fees on card" as she does "not make enough money." Defendant does not include any affirmative defenses.

A party may move for judgment on the pleadings on the basis "...that the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint." Cal. Civ. Pro. § 438(c)(1)(A). The grounds for such a motion must appear on the face of the pleading or from any matter of which the court takes judicial notice. *Id.* at (d).

Code of Civil Procedure § 439(a) provides a meet and confer requirement in which the moving party must meet in confer in person, by telephone, or by video conference for the purpose of determining whether an agreement can be reached. A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion for judgment on the pleadings. Plaintiff acknowledges there has been no meet and confer with Defendant, as Defendant failed to provide her telephone number with her responsive pleadings. Plaintiff sent a letter to Defendant on March 20, 2026, requesting Defendant to contact Plaintiff to meet and confer. No response was received.

A motion for judgment on the pleadings may be granted with or without leave to amend. Cal. Civ. Pro. § 438(h)(1). Generally speaking, leave to amend is to be liberally granted. *Mendoza v. Continental Sales Co.* (2006) 140 Cal. App. 4th 1395 ("When there is a reasonable possibility that a defect in pleading can be cured by amendment, the trial court considering the motion for judgment on the pleadings abuses its discretion by not granting leave to amend..."). However, where the defective pleading is not reasonably susceptible to cure, it is proper for the court to decline leave to amend. *Id.* When leave to amend is not granted, "...then judgment shall be entered forthwith in accordance with the motion granting judgment to the moving party." Cal. Civ. Pro. § 438(h)(3).

Here, the Complaint asserts a cause of action for breach of written contract. The Complaint alleges that Defendant failed to make payments on the contract as agreed, and despite Plaintiff's demand, Defendant continued to refuse to pay the amount owed under the

July 10, 2026
Dept. 9
Civil Tentative Rulings

contract. A copy of the Cardmember Agreements Rates and Fees Table is attached as Exhibit A to the Complaint.

Defendant admits all of the statements of the complaint are true. Such an admission conclusively establishes the elements needed to prove the cause of action asserted in the Complaint. The Court does not find there is a reasonable possibility that a defect in Defendant's pleading can be cured by amendment. Plaintiff's Motion for Judgment on the Pleadings is granted without leave to amend. The court will enter judgment in favor of Plaintiff, JPMorgan Chase Bank, N.A., against Defendant Gina R Sartain, in the sum of \$11,889.23.

TENTATIVE RULING #9:

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS IS GRANTED WITHOUT LEAVE TO AMEND. THE COURT WILL ENTER JUDGMENT IN FAVOR OF PLAINTIFF, JPMORGAN CHASE BANK, N.A., AGAINST DEFENDANT GINA R SARTAIN, IN THE SUM OF \$11,889.23.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.